

above condition referred to the ability to conceptually identify, by comparison of the claimed subject-matter of the "OR" claim with the disclosure of the multiple priority documents, a limited number of clearly defined alternative subject-matters to which the multiple rights of priority claimed could be attributed or not (cf. examples in the Memorandum drawn up by FICPI (M/48/I, Section C) for the Munich Diplomatic Conference in 1973, as cited in G 2/98).

T 571/10 expressly applied the approach of T 1222/11. The application in suit, which concerned a pharmaceutical composition, and D9, also a European application, shared the same filing date and claimed priority from the same earlier national application. By comparing the generic subject-matter of claim 1 in issue with the priority document, the board identified two clearly defined alternative subject-matters (a) and (b) as being encompassed by the claim, but not spelt out in it. Only alternative (a) was fully disclosed in the priority document and therefore enjoyed the claimed priority. D9 could belong to the state of the art under Art. 54(3) EPC only in so far as the priority of the application in suit was not validly claimed while the priority of D9 was. For alternative (a) of claim 1, this was not the case, since D9 had no valid earlier effective date. For alternative (b) of claim 1, D9 was state of the art under Art. 54(3) EPC only for the subject-matter for which the priority claimed for D9 was valid, which was that of alternative (a). This subject-matter was not novelty-destroying for the subject-matter of alternative (b) of claim 1, as it had no overlap with the latter.

The decision headnote states: "In a case in which a single priority is claimed for a given application and a number of features of a claim of said application are generalisations of specific features disclosed in the priority document, a partial priority is to be acknowledged, as long as it is possible to conceptually identify, by a comparison of the claimed subject-matter with the disclosure of the priority document, a limited number of clearly defined alternative subject-matters, including among the alternatives the specific embodiments which are directly and unambiguously derivable from the priority document. In order for this condition to be met, it is not necessary that the clearly defined alternative subject-matters are spelt out as such in the application, nor that the word "or" actually occurs. This condition extends to the case of multiple priorities. In that case, a comparison with the disclosure of each of the priority documents is necessary and for each of the clearly defined alternative subject-matters the earliest priority from which the alternative subject-matter is directly and unambiguously derivable is acknowledged."

5.3.2 Referral case G 1/15 ("Partial priority")

The patent in suit in case T 557/13 of 17 July 2015 (OJ 2016, A87) had been granted on a divisional application. The opposition division concluded that an intermediate generalisation in granted claim 1 with respect to the disclosure of priority document D16 did not give rise to the claiming of a limited number of clearly defined alternative subject-matters (cf. G 2/98, OJ 2001, 413). Hence, although the patent met the requirements of Art. 76(1) EPC, the subject-matter of claim 1 did not enjoy the priority date of parent application D1. D1 was thus considered to be state of the art under Art. 54(3) EPC, and claim 1 to lack novelty in view of the use of the product of example 1 disclosed identically in D16 and D1. For the board, the question to be resolved was whether claim 1 enjoyed

partial priority to the extent that the use of the product of example 1 as disclosed in D16 was encompassed by the more generic definition of claim 1, rather than being spelt out in it. In view of the differing approaches in previous board decisions, the board decided to seek clarification from the Enlarged Board of Appeal of the law on partial priority for generic "OR" claims and on the proper interpretation of the proviso of G 2/98 (point 6.7 of the Reasons).

In G 1/15 (OJ 2017, A82) the Enlarged Board of Appeal ruled that under the EPC, entitlement to partial priority may not be refused for a claim encompassing alternative subject-matter by virtue of one or more generic expressions or otherwise (generic "OR" claim) provided that said alternative subject-matter has been disclosed for the first time, directly, or at least implicitly, unambiguously and in an enabling manner in the priority document. No other substantive conditions or limitations apply in this respect. The Enlarged Board set out its interpretation of Art. 88(2) and (3) EPC. If a claim in the later application was broader than an element disclosed in the priority document, then priority could be claimed for such element. It did not matter whether partial priority was claimed for one element in one priority document only, for a plurality of elements disclosed in one priority document (first situation addressed in Art. 88(3) EPC), for a plurality of elements disclosed in more than one priority document (second situation addressed in Art. 88(3) EPC) or for a plurality of elements disclosed in a plurality of priority documents (situation addressed in Art. 88(2), second sentence, EPC). It was also of no relevance whether one claim encompassed only one element disclosed in a priority document or a plurality of elements disclosed in one or more priority documents. The Enlarged Board considered this interpretation to be confirmed by FICPI Memorandum C (M/48/I) of the *travaux préparatoires* to the EPC 1973, which could be said to express its intent (G 2/98, point 6.4 of the Reasons; see also Minutes of the Munich Diplomatic Conference of 1973, M/PR/I, "Article 86 (88) Claiming Priority", points 308 to 317), and by the Paris Convention. Thus, the EPC did not contain other requirements for recognising the right of priority beyond the same invention, whether for simple, multiple or partial priority, the last being regarded as a sub-group of multiple priorities. As a consequence, the proviso of G 2/98 could not be construed as implying a further limitation of the right of priority.

In assessing whether a subject-matter within a generic "OR" claim could enjoy partial priority, the first step was to determine the subject-matter disclosed in the priority document that was relevant, i.e. relevant in respect of prior art disclosed in the priority interval. This was to be done in accordance with the disclosure test laid down in the conclusion of G 2/98 and on the basis of explanations put forward by the applicant or patent proprietor to support his claim to priority, in order to show what the skilled person would have been able to derive from the priority document. The next step was to examine whether this subject-matter was encompassed by the claim of the application or patent claiming said priority. If the answer was yes, the claim was de facto conceptually divided into two parts, the first corresponding to the invention disclosed directly and unambiguously in the priority document, the second being the remaining part of the subsequent generic "OR"-claim not enjoying this priority but itself giving rise to a right to priority, as laid down in Art. 88(3) EPC. This also corresponded to the scheme described in the Memorandum. The task of determining the relevant disclosure of the priority document taken as a whole, and whether that subject-matter was encompassed by the

claim in the subsequent application, was common practice in the EPO and among practitioners of the European patent system and as such should not pose any additional difficulty. Nor did it create uncertainty for third parties. The decisions reached in T 665/00, T 135/01, T 571/10 and T 1222/11 showed that it could be carried out without any need for additional tests or steps.

5.3.3 Application of G 1/15 in the jurisprudence of the boards

In case T 260/14 the opposition division had denied priority and found that claim 1 lacked novelty pursuant to Art. 54(3) EPC in view of a working example disclosed in the priority document (D5) itself, which example was also disclosed in the description of the patent in suit. (D5 had been dealt with as a case of "toxic priority".) In accordance with G 1/15 (OJ 2017, A82), the board first identified the working example as being relevant subject-matter disclosed in the priority document (cf. G 2/98, OJ 2001, 413). It then analysed whether claim 1 encompassed the working example, and whether that example was alternative subject-matter by virtue of a generic "OR" claim, by comparing the ambit of the claim with the content of the priority document. The claim was to a dental impression material comprising a base paste and a catalyst paste. Both pastes were described using generic features such as "polyethers" and "copolyether of ethyleneoxide". The working example was one specific embodiment of the claim. Multiple alternative working examples would be possible, with different variants falling within the generic features of the claim. The example was thus alternative subject-matter by virtue of a generic "OR" claim which fell within the ambit of claim 1. Hence, the part of claim 1 concerning that example was entitled to partial priority.

Further decisions applying the approach of G 1/15 are T 1526/12 (hair care composition), T 557/13 of 28 July 2017 (use of a cold flow improver), T 2466/13 (insulation panel), T 1399/13 (polymerisation process), T 88/14 (low-fat confectionary product), T 1519/15 (sensing circuit comprising sensing capacitors), T 1728/16 (solid pharmaceutical dosage form), T 401/19 (chromatographic purification method).

In T 282/12 the board held that, for reasons of consistency, the rationale of decision G 1/15 (OJ 2017, A82) must also apply in the context of deciding whether an application from which priority is claimed is the **first application** within the meaning of Art. 87(1) EPC (see more detailed summary of this aspect of the decision in chapter II.D.4.1. above). The board also cautioned in this context against assessing priority by performing a test under Art. 123(2) EPC, which approach had led the opposition division to find that D1 was the first application. The assessment of priority and of the requirement of Art. 123(2) EPC were both based on the concept of disclosure. However, applying a test under Art. 123(2) EPC could lead to wrong conclusions in certain circumstances because the concept of "partial" validity of an amendment does not exist, whereas "partial priority" does. Relating this to the facts of the case (gap width of coated tablet), the board agreed that amending a range from 5% to 33% (i.e. the range in claim 1 and in the priority document D1) to 3% to 33% (i.e. the range in the proprietor's earlier application D22) would result in the addition of subject-matter. However, both of these encompassed an identical part, i.e. the sub-range 5% to 33%, which defined alternative dosage forms that did not change their identity, whether they were claimed as such or as part of a broader group of compositions,

including other compositions with a gap width outside the range 5% to 33%. Thus, in the present case, the mere application of an assessment pursuant to Art. 123(2) EPC to the assessment of the validity of the priority claim did not allow the conclusion that D1 and D22 related in part to the same invention and therefore that the priority was not valid over the whole scope of claim 1.

T 437/14 of 12 March 2019 was the board's final decision following its referral of questions on undisclosed disclaimers to the Enlarged Board of Appeal in case G 1/16 (OJ 2018, A70; the board's findings on the admissibility of the undisclosed disclaimers are summarised in chapter II.E.1.7.2). In view of the added disclaimers, opponent 3 had argued that claim 1 did not validly claim a priority right and that its subject-matter lacked novelty over D57 and D58, two divisional applications of the application on which the patent was based. According to the board, for this, two conditions would have to be fulfilled: that at least one embodiment of the divisional application/s was encompassed by claim 1, and that claim 1 did not enjoy a priority right or at least a partial priority right for the part/s relating to those embodiment/s. Citing G 1/03 (OJ 2004, 413), the board was satisfied that the two disclaimers did not provide a technical contribution and fulfilled the requirements of Art. 123(2) EPC. Therefore the subject-matter of claim 1 enjoyed priority from the earlier application. As far as D57 and D58 disclosed specific compounds falling within claim 1 and validly claimed priority from the earlier application, claim 1 validly claimed a corresponding partial priority right from the earlier application for those compounds. Claim 1 was a generic "OR" claim encompassing alternative subject-matter directly and unambiguously disclosed in the priority document and was thus entitled to a partial priority for that alternative subject-matter within the meaning of G 1/15 (OJ 2017, A82). Thus, D57 and D58 did not form part of the state of the art under Art. 54(3) EPC for the purpose of assessing novelty.

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